discrediting them and their role as propagandists for violent and extremist forms of Islam.[13]

Another slide (actually highlighting the need to stay within the law, however irksome or inconvenient it might be) implied that an unnamed 'restaurant in Texas' might be the subject of surveillance if drug runners were meeting there.[14] The context was not a recommendation, but a warning to NSA staff not to repeat the errors of Minaret, a warrantless wiretapping programme in the 1960s and 1970s whose targets included Martin Luther King and Senator Howard Baker.[15]

That story of the targeted Muslims (if true) raises some serious questions: who would make the decision about initiating such official smears; how would they be conducted; what level of threat or nuisance would be sufficient to trigger this tactic; and what redress would someone have if the smear turned out to be incorrect? Such hypothetical questions are more troubling than—so far—the reality.

The legal framework for counter-terrorism, government hacking, data and meta-data collection, and rules on searches and seizures when international travel is involved is a work in progress. That is not the same as a closed system in which no challenge is possible. Checks and balances in a free, law-governed society do not depend on perfection for their legitimacy. The actions of the NSA and other agencies are directed by elected leaders and subject to scrutiny by lawmakers and by judges. That oversight could be better. But it is not negligible or useless (as it is in the authoritarian countries about which the Snowden camp is so strangely silent). Outcomes vary. At the time of writing, a judge in the District of Columbia had ruled that meta-data collection was illegal, while another judge in New York, in a different case, had given an opposite ruling.

As Inkster argues, even the term 'mass surveillance' is a misnomer. It implies that governments systematically monitor the content of the communications of their